

NFStudio's Privacy Policy

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NFStudio (“**NFStudio**,” “**us**,” “**we**,” or “**our**”) provides the NFStudio application platform (located at nfstudio.xyz) to allow users to buy **.PNG** images created from a source image that is related to non-fungible tokens (“**NFTs**”), which exist on a decentralized network. This Privacy Policy is designed to help you understand how we collect, use, process, and share your personal information, and to help you understand and exercise your privacy rights. For the purposes of this Privacy Policy, “**Personal Data**” means information that relates to an identified or identifiable natural person.

1. SCOPE

This Privacy Policy applies to personal information processed by us, including on our websites and other online or offline offerings. NFStudio is the controller for the personal information we process, unless otherwise stated. For information on how to contact us, please refer to “[Contact Us](#)” below.

2. PERSONAL INFORMATION WE COLLECT

The categories of personal information we collect depend on how you interact with us, our Services, and the requirements of applicable law. We collect information that you provide to us, information we obtain automatically when you use our Services, and information from other sources such as third-party services, as described below.

A. Information You Provide to Us Directly

We may collect the following personal information that you provide to us.

- **Crypto wallet information.** To use our Services to buy **.PNG** images, you will need to use an existing cryptocurrency wallet. This payment interaction is done via a third-party service. As such, the payment interaction is subject to that third-party service Privacy Policy, not this Privacy Policy.
- **Transactional information.** When completing a transaction using the Services, you provide the blockchain transaction history and information relating to or needed to complete your purchases on or through the Service.

- **Your communications with us.** We may collect personal information, such as email address, phone number, or mailing address when you request information about our Services, request customer or technical support, or otherwise communicate with us.

No sensitive personal information. Please do not provide any sensitive personal information (e.g., social security numbers, information related to racial or ethnic origin, political opinions, religion or other beliefs, health, biometrics or genetic characteristics, criminal background or trade union membership) when you contact us. If you provide us with any sensitive personal information when you contact us, you must consent to our processing and use of such sensitive personal information in accordance with this Privacy Policy. If you do not consent to our processing and use of such sensitive personal information, you must not provide such sensitive personal information. We will never ask you to provide such data when using our Services.

B. Information Collected Automatically

We may collect personal information automatically when you use our Services:

- **Automatic Data Collection.** We may collect certain information automatically when you use our Services, such as your Internet protocol (IP) address, user settings, MAC address, cookie identifiers, mobile carrier, mobile advertising and other unique identifiers, browser or device information, location information (including approximate location derived from IP address), and Internet service provider. We may also automatically collect information regarding your use of our Services, such as pages that you visit before, during and after using our Services, information about the links you click, the types of content you interact with, the frequency and duration of your activities, and other information about how you use our Services.
- **Cookies and Other Technologies.** We, as well as third parties that provide functionality on our Services, may use cookies and other technologies ("**Technologies**") to automatically collect information through your use of our Services.
 - **Cookies.** Cookies are small text files placed in device browsers that store preferences and facilitate and enhance your experience.

Our uses of these Technologies fall into the following general categories:

- **Operationally Necessary.** This includes Technologies that allow you access to our Services, applications, and tools that are required to identify irregular website behaviour, prevent fraudulent activity, improve security, or allow you to make use of our functionality.

- **Performance-Related.** We may use Technologies to assess the performance of our Services, including as part of our analytic practices to help us understand how individuals use our Services (*see Analytics below*).
- **Functionality-Related.** We may use Technologies that allow us to offer you enhanced functionality when accessing or using our Services. This may include keeping track of your specified preferences.

See “[*Your Privacy Choices and Rights*](#)” below to understand your choices regarding these Technologies.

- **Analytics.** We may use Technologies and other third-party tools to process analytics information on our Services. Some of our analytics partners include Vercel Web Analytics and Sentry. This allows us to process usage data to better understand how our website and web-related Services are used. This enables us to continually improve our website, making it relevant to your interests and needs. This may involve personal data, such as cookie and other device identifiers. For more information, please visit [Vercel Web Analytics’ Privacy Policy](#) and [Sentry’s Privacy Policy](#).

3. HOW WE USE YOUR INFORMATION

We use your information for a variety of business purposes, including to provide our Services and administrative purposes, as described below.

A. Provide Our Services

We use your information to fulfil our contract with you and provide you with our Services, such as:

- Providing access to certain functionalities and features of our Services.
- Answering requests for customer or technical support.
- Processing your financial information and other payment methods for products or Services purchased or downloaded.

B. Administrative Purposes

We use your information for our legitimate interests, or to comply with our legal obligations, such as:

- Direct marketing, research and development (including marketing research), network and information security, and fraud prevention.

- Detecting security incidents, protecting against malicious, deceptive, fraudulent or illegal activity, and prosecuting those responsible for that activity.
- Measuring interest and engagement in our Services.
- Improving, upgrading, or enhancing our Services.
- Developing new products and Services.
- Ensuring internal quality control and safety.
- Authenticating and verifying individual identities, including requests to exercise your rights under this policy.
- Debugging to identify and repair errors with our Services.
- Auditing relating to interactions, transactions, and other compliance activities.
- Sharing information with third parties as needed to provide the Services.
- Enforcing our agreements and policies.

4. HOW WE DISCLOSE YOUR INFORMATION

We disclose your information to third parties for a variety of business purposes, including to provide our Services, to protect us or others, as described below.

A. Disclosures to Provide our Services

The categories of third parties with whom we may share your information are described below.

- **Service Providers.** We may share your personal information with our third-party service providers who use that information to help us provide our Services. This includes service providers that provide us with hosting and payment processing services.
- **APIs/SDKs.** We may use third-party Application Program Interfaces (“**APIs**”) and Software Development Kits (“**SDKs**”) as part of the functionality of our Services. For more information about our use of APIs and SDKs, please contact us as set forth in “Contact Us” below.

B. Disclosures to Protect Us or Others

We may access, preserve, and disclose any information we store associated with you to external parties if we, in good faith, believe doing so is required or appropriate to: comply with law enforcement or national security requests and legal process, such as a court order or subpoena; protect your, our, or others’ rights, property, or safety; enforce our policies or contracts; collect amounts owed to us; or assist with an investigation or prosecution of suspected or actual illegal activity.

5. YOUR PRIVACY CHOICES AND RIGHTS

Your Privacy Choices. The privacy choices you may have about your personal information are determined by applicable law and are described below.

- **“Do Not Track.”** Do Not Track (“DNT”) is a privacy preference that users can set in certain web browsers. Please note that we do not respond to or honor DNT signals or similar mechanisms transmitted by web browsers.
- **Cookies and Interest-Based Advertising.** You may stop or restrict the placement of Technologies on your device or remove them by adjusting your preferences as your browser or device permits. However, if you adjust your preferences, our Services may not work properly.

Your Privacy Rights. In accordance with applicable law, you may have the right to:

- **Access Personal Information** about you, including: (i) confirming whether we are processing your personal information; (ii) obtaining access to or a copy of your personal information.
- **Request Correction** of your personal information where it is inaccurate, incomplete or outdated.
- **Request Deletion, Anonymization or Blocking** of your personal information when processing is based on your consent or when processing is unnecessary, excessive or noncompliant.
- **Request Restriction of or Object to** our processing of your personal information when processing is noncompliant.
- **Withdraw your Consent** to our processing of your personal information.
- **Request data portability** and **receive an electronic copy of personal information that you have provided to us.**

6. SECURITY OF YOUR INFORMATION

We take steps to ensure that your information is treated securely and in accordance with this Privacy Policy. Unfortunately, no system is 100% secure, and we cannot ensure or warrant the security of any information you provide to us. We have taken appropriate safeguards to require that your personal information will remain protected, and take steps to require our third-party service

providers and partners to have appropriate safeguards as well. To the fullest extent permitted by applicable law, we do not accept liability for unauthorised disclosure.

7. INTERNATIONAL DATA TRANSFERS

All information processed by us may be transferred, processed, and stored anywhere in the world. We endeavour to safeguard your information consistent with the requirements of applicable laws.

8. RETENTION OF PERSONAL INFORMATION

We store the personal information we collect as described in this Privacy Policy for as long as you use our Services, or as necessary to fulfil the purpose(s) for which it was collected, provide our Services, resolve disputes, establish legal defenses, conduct audits, pursue legitimate business purposes, and comply with applicable laws.

9. CHILDREN'S INFORMATION

The Services are not directed to children under 18, and we do not knowingly collect personal information from children. If you are a parent or guardian and believe your child has given us personal information without your consent, you may contact us as described in "[Contact Us](#)" below. If we become aware that a child has provided us with personal information in violation of applicable law, we will delete any personal information we have collected, unless we have a legal obligation to keep it.

10. OTHER PROVISIONS

Third-Party Websites/Applications. The Services may contain links to other websites/applications and other websites/applications may reference or link to our Services. These third-party services are not controlled by us. We encourage our users to read the privacy policies of each website and application with which they interact. We do not endorse, screen, or approve, and are not responsible for, the privacy practices or content of such other websites or applications. Providing personal information to third-party websites or applications is at your own risk.

Changes to our Privacy Policy. We may revise this Privacy Policy from time to time at our sole discretion. We do not ask or force you to give us any personal information for the usage of our

Services, as such, we do not have a way to notify you if there is any material changes to this Privacy Policy. We strongly recommend you to regularly check on this Privacy Policy. You understand and agree that you will be deemed to have accepted the updated Privacy Policy if you continue to use our Services after the new Privacy Policy takes effect.

Accessibility. This Privacy Policy uses industry-standard technologies and was developed in line with the World Wide Web Consortium's Web Content Accessibility Guidelines, version 2.1. If you wish to print this policy, please do so from your web browser or by saving the page as a PDF.

13. CONTACT US

If you have any questions about our privacy practices or this Privacy Policy, or to exercise your rights as detailed in this Privacy Policy, please contact us at legal@nfstudio.xyz.